



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

NOV 19 1990

DOT-E 10505

1. Consolidated Rail Corporation, Philadelphia, PA., is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one-time shipment of vinyl chloride residue in a DOT Specification 112T340W tank car tank with the head shield, double shelf coupler and draft gear on the "A" end completely detached from the car, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Consolidated Rail Corporation's application of November 12, 1990 submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for protection of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Vinyl chloride, classed as a flammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Vinyl chloride.

5. REGULATION AFFECTED. 49 CFR 173.29(c)(2), 179.14, and 179.105-5.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 112T340W tank car tank (Serial number ACFX 80422) meeting all DOT requirements (49 CFR Parts 100-299), except that the double shelf coupler, exterior head shield, and the draft gear assembly are completely disengaged from the "A" end of the car.

8. SPECIAL PROVISIONS.

a. The tank car must be marked "DOT-E 10505" in letters at least four inch high on a contrasting background above the DOT specification number.

b. The tank car will be loaded onto a flat car (CR 725018) and secured according to Association of American Railroads open top loading rules.

c. Shipment must be made between Consolidated Rail Corporation, Galion, Ohio and Empak, Houston, Texas. The shipment will be interchanged to the Burlington Northern at East St. Louis, Illinois and then continue to destination, a total distance of approximately 1200 miles.

d. The Federal Railroad Administration shall be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration  
Office of Safety, RRS-12  
400 Seventh Street, S.W.  
Washington, D.C. 20590  
(202) 366-9178 or 366-0549

e. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, and all terms of this exemption are complied with.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. January 31, 1991 or upon completion of one shipment, whichever occurs first.

Issued at Washington, D.C.

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

NOV 19 1990

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.  
Attention: Exemptions Branch.

Dist: FRA.